

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506378	ROMERO VS CREATING A LEGACY, INC.	HEARING RE: MOTION TO APPOINT A NEUTRAL ARBITRATOR PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 1281.6 BY CREATING A LEGACY, INC.

Tentative Ruling: The parties' moving and opposition papers show that the method for selecting a neutral arbitrator, as agreed upon by the parties in the arbitration agreement, has failed and therefore the condition for the Court's intervention to appoint a neutral arbitrator under Code of Civil Procedures section 1281.6 has been satisfied.

Defendant asserts that the arbitration agreement contains no contractual procedures for selecting or appointing an arbitrator. That is not entirely accurate as the agreement does vaguely spell out the procedures to be followed in the arbitration proceeding, including the mutual selection of the arbitrator. Defendant's motion is accompanied by the declaration of its counsel, Mark W. Edelstein, to which a copy of the parties' arbitration agreement is attached as an exhibit. The relevant portions of the agreement provide that "[a]fter any and all jurisdictional prerequisites have been satisfied, the Party bringing the claim must demand arbitration in writing and deliver the written demand by hand or first-class mail to the other Party within the applicable statute of limitations period. (Edelstein Decl., ¶ 4, Ex. 2 [arbitration agreement, pg. 2].) It further goes on to provide that "[o]nce the arbitration process has been initiated, the Company and Employee shall mutually select an arbitrator, who will be an attorney licensed to practice in the location where the arbitration proceeding will be conducted or a retired federal or state judicial officer." (Ibid.) "If for any reason the Parties cannot agree to an Arbitrator, either Party may apply to a court of competent jurisdiction with authority over the location where the arbitration will be conducted for appointment of a neutral Arbitrator." (Ibid.)

Here, Plaintiff purports to have initiated the arbitration process with JAMS and that doing so was in accordance with the Court's order and the arbitration agreement. Plaintiff asserts that Defendant merely objected to Plaintiff's choosing JAMS as the arbitration provider to administer the proceeding and that it did not engage in the mutual selection of a neutral arbitrator before filing the instant motion seeking the Court's intervention. However, Plaintiff's framing of the nature of the parties' dispute is specious as Plaintiff has unilaterally undermined the mutual selection process by removing any non-JAMS arbitrator from the selection pool whereas the parties' have not designated JAMS to serve as the arbitration provider. Plaintiff refused to dismiss the arbitration with JAMS. Hence, as Defendant notes, the parties are in disagreement as to the selection of a mutual arbitrator, Defendant has properly moved to seek the Court's appointment under section 1281.6 as well as the arbitration agreement.

Section 1281.6 requires the Court to "nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration." (Code Civ. Proc., § 1281.6.) Defendant provided its suggested list of arbitrators; however, Plaintiff has provided no such list. Therefore, the hearing shall be continued and the parties are ordered to meet and confer and, at least 10 days before the continued hearing date, construct and file with the Court a joint list of proposed arbitrators from which the Court will make its nomination. Thereafter, pursuant to section 1281.6, the parties shall,

within five-day period of the Court's nomination, "jointly select the arbitrator whether or not the arbitrator is among the nominees." (Ibid.)

Plaintiff's request to "hold the arbitration [with JAMS] in abeyance while the parties complete a fair selection process or seek appointment under section 1281.6" is rejected. The Court, granting such an order, would be injecting additional terms into the parties' arbitration agreement which the parties have not agreed to. Further, once a matter has been submitted to arbitration, the Court's jurisdiction is limited "to determine any subsequent petition involving the same agreement to arbitrate and the same controversy." (Code Civ. Proc., § 1292.6.) The California Arbitration Act does vest the trial court "with the power ... entertain a petition by the plaintiff for judicial assistance in moving the arbitration forward where the matter is foundering for reasons beyond the plaintiff's control." (*Preston v. Kaiser Found. Hospitals* (1981) 126 Cal.App.3d 402, 407.) Here, however, the circumstances necessitating a hold on the arbitration process with JAMS were not created by anything beyond Plaintiff's control. Rather, Plaintiff unilaterally initiated arbitration with JAMS while bypassing a mutual discussion with Defendant.

The hearing on the Motion to Select a Neutral Arbitrator is CONTINUED to 10.07.26.

The parties are ordered to meet and confer and, at least 10 days before the continued hearing date, construct and file with the Court a joint list of proposed arbitrators from which the Court will make its nomination.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508625	REED VS BOYS AND GIRLS CLUB OF COACHELLA VALLEY INC.	HEARING RE: MOTION TO COMPEL BY BOYS AND GIRLS CLUB OF COACHELLA VALLEY INC.

Tentative Ruling: A motion to compel further interrogatory responses must include a meet-and-confer declaration under Code of Civil Procedure section 2016.040. (CCP §2030.300(b)(1).) As effective 1/1/26, section 2016.040 requires a meet-and-confer declaration to "state facts showing a reasonable and good faith attempt, either *in person*, *by telephone*, or *by videoconference*" to resolve disputes. A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and "[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter." (*Id.* at 1293 [internal quotation marks omitted].) Here, Defendant concedes that no in-person, telephone, or videoconference occurred before it filed the motion. (Overstreet Reply Decl., ¶¶ 3-4.) Defendant relies on *Clement v. Alegre*, supra, 177 Cal.App.4th 1277 to argue that a live conference is not always necessary. However, *Clement* predates the current statutory language expressly requiring an in-person, telephone, or videoconference.